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Attorneys for Defendants
AMAZON.COM SERVICES LLC and
AMAZON LOGISTICS, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1-5,

Defendants.

Case No. 8:22-cv-01727-FWS-JDE

DECLARATION OF ANDREW P. FREDERICK IN SUPPORT OF STIPULATION REGARDING BRIEFING SCHEDULE FOR PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Ctrm: 10D
Judge: Hon. Fred W. Slaughter

DECLARATION OF ANDREW P. FREDERICK

I, Andrew P. Frederick, hereby declare:

1. I am an attorney at law, duly licensed to practice in the State of California and admitted to practice before all courts in the State of California and in the Central District of California. I am a partner with the law firm of Morgan, Lewis & Bockius, LLP, counsel of record for Defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together, "Amazon") in the above-captioned case. I make this declaration in support of the Stipulation Regarding Briefing Schedule for Plaintiff's Motion for Class Certification, submitted by Plaintiff and Defendants (collectively, the "Parties").

2. The matters stated herein are based on personal knowledge, and if called as a witness, I could and would testify competently thereto.

3. The Parties have met and conferred as part of the Rule 26(f) conference and have agreed on a proposed briefing schedule for Plaintiff's Motion for Class Certification.

4. In this Court, the Motion for Class Certification typically is due 120 days after the scheduled date for the Rule 26(f) conference. Since the scheduled date for the conference is March 16, 2023, Plaintiff's Motion for Class Certification is due to be filed by July 14, 2023. Defendants' respective motions to dismiss are pending and it is unclear whether all claims in the First Amended Complaint will survive. The Parties have agreed that Plaintiff should have about 60 additional days to conduct discovery and prepare and file his Motion for Class Certification and agree that his deadline to file his Motion should be September 14, 2023. The Parties have agreed that Defendants should have four weeks to prepare and file their opposition to Plaintiff's Motion for Class Certification, and Plaintiff should have three weeks to prepare and file his Reply in support of the Motion.

5. The Parties propose and request that the Court set the following briefing schedule for Plaintiff's Motion for Class Certification:

Event	Deadline/Date
Deadline for Plaintiff's Class Certification Motion	9/14/2023
Deadline for Defendants' Opposition to Class Certification	10/12/2023
Deadline for Plaintiff's Reply to Opposition	11/02/2023
Hearing on Class Certification Motion	11/30/2023 @ 10 a.m.

6. The Parties submit that good cause exists for the Court to adopt the briefing schedule that the Parties have proposed.

I declare under penalty under the laws of the United States of America that the foregoing is true and correct.

Executed on this 3rd day of March 2023 at Palo Alto, California.

/s/ Andrew P. Frederick
Andrew P. Frederick